

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Secure-Treatment Order

BEFORE THE HONOURABLE JUSTICE

UPON READING the Secure-Treatment Certificate, the [*Application for Secure-Treatment Order/Application for Renewal of Secure-Treatment Order*], the Affidavit of [name], and all other documents on file in the matter;

AND UPON IT APPEARING that the proper persons have received notice of the Application in accordance with the *Civil Procedure Rules* and the *Children and Family Services Act*;

AND UPON HEARING [name], counsel for the Applicant, [name];

AND UPON HEARING [name], counsel for the Respondent child, [full name, birthdate];

AND UPON the Court being satisfied that the requirements of sections 55(1) and 56(3) of the *Children and Family Services Act* have been met;

AND UPON the Court giving reasons for its decision on [date], 20 ;

NOW UPON MOTION:

IT IS DECLARED:

1. Pursuant to section 56 of the *Children and Family Services Act*, that
 - (a) the child, [full name, birthdate], is suffering from an emotional or behavioural disorder, and
 - (b) it is necessary to confine the child in order to remedy or alleviate the disorder.

IT IS ORDERED:

2. Pursuant to section 56 of the *Children and Family Services Act*, that the applicant is authorized to do the following with respect to the child, : [full name, birthdate]
 - (a) admit the child to a secure-treatment facility, in particular [*Wood Street Centre Secure Treatment, 225 Wood Street, Truro, Nova Scotia*/[name and address of other secure-treatment facility]];
 - (b) detain the child at [*Wood Street Centre Secure Treatment*/[name of other secure-treatment facility]] for the purpose of diagnostic and treatment services in accordance with the plan of care determined by the applicant; and
 - (c) discharge the child from [*Wood Street Centre Secure Treatment*/[name of other secure-treatment facility]] during the currency of this Order or on its expiration, in accordance with a discharge plan determined by the applicant.
3. Pursuant to section 59 of the *Children and Family Services Act*, this Order is sufficient authority for a peace officer, representative or person designated by the applicant in accordance with the regulations to apprehend, detain, and convey the child, [full name, birthdate], to [*Wood Street Centre Secure Treatment, 225 Wood Street, Truro, Nova Scotia*/[name and address of other secure-treatment facility]] and, pursuant to section 91 of the *Children and Family Services Act*, it is the duty of all peace officers to assist any representative in carrying out the provisions of the Act and this Order;
4. Pursuant to section 56 of the *Children and Family Services Act*, this Order remains in effect until [date], 20_, at 11:59 p.m., unless one of the following events occurs first:
 - (a) the Order is varied or terminated on the hearing of an Application for Review pursuant to section 57 of the *Children and Family Services Act*,
 - (b) the Order is renewed on the hearing of an Application for Renewal pursuant to section 56(4) of the *Children and Family Services Act*, or
 - (c) the child is discharged from [*Wood Street Centre Secure Treatment*/[name of other secure-treatment facility]] by the applicant, in accordance with a discharge plan determined by the applicant.

DECISION RENDERED [date], 20 .

ISSUED at , Nova Scotia,[date], 20 .

Deputy Prothonotary

